

		Under the factors considered in <i>North American Chemical</i>, the Court does not find, at the pleading stage, that the economic loss rule bars Plaintiff's negligent repair cause of action on the face of the Complaint. Thus, the demurrer on these grounds is overruled. Defendants also move to strike Plaintiff's punitive damages request. The motion is denied because Plaintiff has asserted a viable cause of action for fraudulent concealment, and punitive damages are available where a defendant is guilty of fraud. (Civ. Code, § 3294, subd. (a); see <i>Dhital v. Nissan North America, Inc.</i>, <i>supra</i>, 84 Cal.App.5th at p. 845 [reversing trial court's order granting motion to strike punitive damages allegations where the plaintiff stated a viable fraud claim]; <i>Nissan Motor Acceptance Cases</i> (2021) 63 Cal.App.5th 793, 829 [fraudulent concealment is an intentional tort that may support a punitive damages award].) While Defendants argue the Complaint fails to identify an officer, director, or managing agent who engaged in, authorized, or ratified the alleged misconduct, the Complaint alleges Manufacturer knew of the Engine Defect, its safety risks, and its inability to repair the defect, yet failed to disclose the defect and continued to authorize limited repair measures. (Complaint, ¶¶ 57, 62-65, 72-78.) At the pleading stage, these allegations are sufficient to support the punitive damages request based on fraud. Defendants shall file their Answer to the Complaint within five days of notice of this order. Plaintiff to give notice.
54	Hernandez vs. Kopecky 25-01482111	Motion to Strike Portions Of Complaint Motion to Strike is MOOT. Case Management Conference remains on Calendar.
55	Newnes vs. Lay 25-01525344	1. Demurrer to Amended Complaint 2. Motion to Strike Portions Of Complaint Defendant Christopher Carr Lay demurs to the first, second, third, fourth, sixth, and seventh causes of action in the First Amended Complaint ("FAC") filed by Plaintiff Curt Newnes. Defendants Josh Chandler and Justice Solutions Group, LLC (JSG") demur to the FAC's fifth cause of action. The demurrer is SUSTAINED as to the first cause of action for identity theft; third cause of action for defamation; fourth cause of action for unfair competition; and fifth cause of action for constructive fraud. The demurrer is OVERRULED as to the second cause of action for invasion of privacy; sixth cause of action for negligence (per se); and seventh cause of action for violation of Penal Code section 496.